Environmental Crime Data Sharing Agreement

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1. Introduction to the Sharing

This Data Sharing Agreement [DSA] documents how the parties to this agreement, listed in Appendix A, will share personal data about environmental crime. By signing this Agreement, the named agencies agree to accept the conditions set out in this document, according to their statutory and professional responsibilities, and agree to adhere to the procedures described.

This Agreement has been developed to:

- Define the specific purposes for which the signatory agencies have agreed to share information.
- Outline the Personal, Special Category and Criminal Data to be shared.
- Set out the lawful basis conditions under UK GDPR and Data Protection Act 2018 through which the information is shared, including reference to the Human Rights Act 1998 and the Common Law Duty of Confidentiality.
- Stipulate the roles and procedures that will support the processing/sharing of information between agencies.
- Describe how the rights of the data subject(s) will be protected as stipulated under the data protection legislation.
- Describe the security procedures necessary to ensure compliance with responsibilities under data protection legislation and agency-specific security requirements.
- Describe how this arrangement will be monitored and reviewed.
- To illustrate the flow of information from referral through processing and outcome.

Parties to this agreement cannot amend or add appendices unless agreed as part of a formal review. It is expected that each party will have procedures, processes and policies sitting underneath this agreement, for their respective organisations. These will, for example, describe the specific processes for secure transfer of data.

1.1. Partner / Parties

For simplicity, the Partner Organisation will be referred to as ‘Partner’, ‘Partner Organisation’ or ‘Partner Agency’ in this agreement.

‘Partner Organisation’ includes any and all of the organisation’s legally contracted subcontractors, in recognition that some London councils have shared service arrangements or have outsourced part or all of their environmental crime enforcement.

The partnership brings together a number of parties who each hold and process information in relation to environmental crime where sharing of information will allow them to have a full picture of the circumstances surrounding the crime, thus allowing better targeted and more effective action. It is recognised, as explained in 2.1 below, that environmental crime is a wide area and can include crimes

committed by Organised Crime Gangs (OCGs) as well as smaller, localised issues such as littering and dog fouling.

It is recognised that there is a DSA between London Councils and the Environment Agency which covers sharing between the Environment Agency and councils and vice versa, but does not cover sharing between the councils themselves or between council and the other Parties to this agreement.

1.2. Ownership of this agreement

This agreement was drafted by a working group of representatives of the London Boroughs of Camden, Richmond and Wandsworth, and Waltham Forest. These professionals were specialists in information governance and law, and environmental crime and procedures. The local authority representatives worked under the banner of the Information Governance for London Group (IGfL), to draft one agreement that would work for all boroughs across London. The aim is to reduce the number of versions of sharing agreements that historically differed between boroughs, partly to reduce the burden on pan-London organisations that must have agreements with multiple boroughs.

IGfL, a group of information and security professionals at London boroughs, assisted with coordination of this agreement, but the responsibilities within it, and compliance with data protection legislation, remain with the listed Data Controllers.

1.3. Responsibilities of parties involved

The parties are registered Data Controllers under the Data Protection Act. Signatories are identified as those who have signed this agreement on the Information Sharing Gateway and are all London local authorities. The role of councils in this area is given in Appendix A. All parties confirm that they comply with data protection legislation by:

- having a lawful basis for processing and sharing personal data.
- ensuring data quality.
- storing and sharing information securely, with access management controls.
- having policies and procedures for compliance with data protection legislation including for managing data subject rights & complaints, identifying and managing data breaches/incidents and retention & disposal.
- ensuring that mandatory training is undertaken regularly by their employees to ensure they are clear and up to date on their responsibilities. Every individual must uphold the principles of this agreement and overarching confidentiality, and seek advice from the relevant Data Protection Officer when necessary.
- undertaking appropriate data protection due diligence checks with any contractors/data processors they employ, and ensuring that a written agreement is in place with each data processor, and that all data processors will be bound by this agreement.
- having written processes for the processing of data to ensure employees use and share personal data in line with data protection law, the data protection principles, and this agreement.

Organisations and their staff must consult the organisation's Data Protection Officer/Information Governance Manager if they are unsure at any point in the processing and sharing of personal data.

1.4. Confidentiality and vetting

Each Partner must ensure that there are appropriate written contracts or agreements with employees, agency staff, volunteers etc. These must include requirements to ensure compliance with policies which include confidentiality.

Each Partner must ensure that suitable vetting has taken place. This may be through standard employee checks (BPSS or equivalent), DBS, Security Vetting or Counter Terrorist Check [CTC].

1.5. Assessment and review

A review of this information sharing agreement will take place yearly unless otherwise agreed by the organisations' Data Protection Officers. The aim of the review will be to ensure the purposes are still relevant, the scope has not slipped, the benefits to the data subjects and organisations are being realised, and the procedures followed for information security are effective. Changes in legislation and developments in the areas of public sector data sharing will be considered as and when they arise, as will any changes to the signatory parties.

The working group who drafted this agreement strongly recommends that a working group approach is used for any reviews, as this was a successful way to achieve pan-London and cross-specialism consensus to one sharing agreement.

1.6. Termination of agreement

In the event of termination of this agreement each party may continue to hold information originating from other parties for which they are the Data Controller.

1.7. Outside of this agreement

There are multiple other information sharing arrangements that form part of the duties of the parties and involve similar data for often similar overall purposes, like safeguarding and preventing crime. A non-exhaustive list is below. Some of these agreements are live, others in draft. Some sharing may involve CCTV footage which would be partly covered by the CCTV DSA. Some sharing, such as links to safeguarding issues, (eg under the Prevention of Damage by Pest Act where there are vermin issues) may be linked to adult safeguarding concerns which would be covered by the Adult Safeguarding DSA. Similarly, roadside sales where there were OCG/modern slavery issues would have coverage of the safeguarding aspects under Adult Safeguarding or the MAS DSAs. This DSA covers the environmental aspects only.

Area of work	Description
Gangs/Gangs Violence Matrix	The gang and serious youth violence projects are part of specific police-led initiatives.
DA MARAC	Domestic abuse data sharing initiatives
Multi-Agency Public Protection Arrangements.	Public protection involves generally a different level of discussion to other agreements.

Area of work	Description
Prevent/Channel Panel	The PREVENT strategy and Channel Panel are aimed at reducing the risk of radicalisation of young persons
Rescue & Response (County Lines)	The exploitation of persons to sell and move drugs between areas, commonly known as “county lines” is a major element of modern exploitation of young persons and in some cases, modern slavery.
IOM	Offender management
MAS/MASH	The multi-agency safeguarding DSA covers children’s safeguarding sharing
Licensing	This covers sharing for all licensing including alcohol, gambling, special treatments and sexual entertainment venues
Adult Safeguarding	All aspects of adult safeguarding including cuckooing, financial, physical, and emotional abuse of adults.
ASB	Agreement for sharing information about all forms of anti-social behaviour
CCTV	Agreements with police and other trusted agencies to cover sharing of various types of CCTV footage for various crime and other related purposes
YOT/YOS	DSAs covering youth offending team and services
General Crime not included in other DSA/ISA	This is a non-central Police DSA, signed by local BCUs as appropriate to cover the sharing of lower level information about crime or harm not covered in other agreements, such as that in local authority caution registers, non-licensing test purchasing, lower level criminal matters
London Resilience	Information sharing between various agencies for responses to civil emergencies and disasters such as flooding

2. Purpose and Benefits

2.1. Purpose

This agreement covers the sharing of information by and between the listed agencies for the purpose of preventing, deterring, investigating and prosecuting environmental crimes. It is noted that there is an overlap between the responsibilities of the Environment Agency and local councils, and that information sharing between those is covered in a different DSA and outwith the scope of this DSA.

The scope of environmental crime covers a wide range of activities from littering and dog fouling, to fly tipping which can include bulk disposal of contaminated materials, and illegal scrap metal activities. It also covers areas such as graffiti and similar defacements, abandoned vehicles and stray dogs.

It is noted that bulk disposal of contaminated materials, and illegal scrap metal activities may be linked to Organised Criminal Gang activities. Whilst the other areas covered by this DSA may not be considered to be serious offences, they are ones that can cause anxiety to residents and lead to detrimental environmental effects for residents. Councils receive many complaints about graffiti and dog fouling and these, and the other areas covered in this DSA are ones that frequently negatively affect local residents.

Sharing information allows councils and agencies to take joined-up action and ensure the most appropriate course of action can be taken in respect of both individual cases and wider problems. Targeted actions can be coordinated, offenders located and prosecuted, and information shared to ensure that proportionate outcomes are pursued.

2.2. Benefits

The sharing will allow both partners to better deliver their statutory series and will allow more effective use of resources, giving more joined-up working which increases efficiency. The public will benefit from this approach, as services will be delivered in a more streamlined way that utilises the information shared to provide better tailored and appropriate services.

The benefits of this DSA are to:

- Cover the sharing of information for the prevention, detection, and prosecution of environmental crimes
- Remove barriers to effective information sharing.
- Sets parameters for sharing personal data and clearly identifies the responsibilities of organisations.
- Identify the correct lawful basis to share personal information.
- Ensure information is shared whenever there is a requirement to do so.
- Enables authorities to share data on performance, quality assurance, learning and impact analysis.
- Raises awareness amongst all agencies of the key issues relating to information sharing and gives confidence in the process of sharing information with others.
- Allow agencies to deal more effectively with environmental crimes that cross agency boundaries

- Allow agencies to have a fuller picture of environmental crimes that affect more than one borough, to allow appropriate action to be determined

2.3. Principles of information sharing

Effective information sharing is a vital element of ensuring that environmental crimes receive a just and proportionate response, and crime is deterred.. Organisations can hold different pieces of information which need to be placed together to enable a joined up problem solving approach. To share information, a lawful basis for doing so must be identified. This is based on the legislation in Appendix C.

The sharing of personal data must comply with both the GDPR Principles listed at Appendix B. Together, those principles lead to a series of questions and considerations to be answered before sharing takes place. These are listed as an Information Sharing Checklist in *Appendix D: Information Sharing Checklist.*

2.4. Lawful Basis

The sharing of information must comply with the law relating to confidentiality, data protection and human rights. Having a legitimate purpose for sharing information is an important part of meeting those legal requirements. This is a complex area and each Partner must take their own decisions and seek advice from their organisation's Data Protection Officer/Information Governance Manager.

For purposes other than law enforcement by competent authorities

Articles 6, 9 and 10 of the UK GDPR, and section 8 of the DPA 2018 set out the acceptable conditions for the processing and sharing of personal, special category, and criminal data. The conditions relevant in the UK GDPR to data processed under this agreement are below.

Article 6 (1) – Personal Data Processing
(e) processing is necessary for the performance of a task carried out in the **public interest** or in the exercise of official authority vested in the controller Use of this article requires that the Data Protection Act section 8 be satisfied. The laws given at *Appendix C – Applicable legislation* provide for each party a legal basis under section 8 – the specifics are noted in the appendix.

Article 9 (2) – Special Category Personal Data Processing

(g) **substantial public interest** - processing is necessary for reasons of substantial public interest, on the basis of Union or Member State law which shall be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and the interests of the data subject

Use of this article requires that the Data Protection Act Section 10(3) be satisfied. This requires that a condition within Schedule 1, Part 2 is met. For this agreement these are:

- *Statutory etc., and government purposes under Para 6(1)(2)*
- *Preventing and detecting unlawful acts under Para 10(1)(2)(3)*
- *Safeguarding children and individuals at risk under Para 18(1)(2)(3)(4)*

Art. 10 GDPR : Processing of personal data relating to criminal convictions and offences

Processing of personal data relating to criminal convictions and offences or related security measures based on Article 6(1) shall be carried out only under the control of official authority or when the processing is authorised by Union or Member State law providing for appropriate safeguards for the rights and freedoms of data subjects. Any comprehensive register of criminal convictions shall be kept only under the control of official authority.

PART 2 Substantial public interest conditions

Requirement for an appropriate policy document when relying on conditions in this Part

5(1) Except as otherwise provided, a condition in this Part of this Schedule is met only if, when the processing is carried out, the controller has an appropriate policy document in place (see paragraph 39 in Part 4 of this Schedule).
(2) See also the additional safeguards in Part 4 of this Schedule.

Statutory etc and government purposes

6(1) This condition is met if the processing—
(a) is necessary for a purpose listed in sub-paragraph (2), and
(b) is necessary for reasons of substantial public interest.
(2) Those purposes are—
(a) the exercise of a function conferred on a person by an enactment or rule of law;
Preventing or detecting unlawful acts

10(1) This condition is met if the processing—

(a) is necessary for the purposes of the prevention or detection of an unlawful act,
(b) must be carried out without the consent of the data subject so as not to prejudice those purposes, and
(c) is necessary for reasons of substantial public interest.

For the purposes of law enforcement by competent authorities

The “competent authorities” are defined in Section 30 of the DPA which refers to Schedule 7. The competent authorities under this agreement are councils when acting under Part 3 and not Part 2.

The “law enforcement” purposes are defined in Section 31 of the DPA as “*prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and the prevention of threats to public security”.* This applies to many of the offences under this DSA.

There are additional safeguards required for “sensitive processing”. This is defined in Section 35(8) as:

(a) the processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs or trade union membership;

(b) the processing of genetic data, or of biometric data, for the purpose of uniquely identifying an individual;

(c) the processing of data concerning health;

(d) the processing of data concerning an individual’s sex life or sexual orientation.

It is unlikely that this sensitive data will be regularly processed by councils under Part 3. However it may be that for example health data is relevant to commission or not of an offence. The additional requirements are given in Section 35(4) and (5). Both require an appropriate policy document, and this document will form part of the policy for such processing, although competent authorities will need to satisfy themselves that their own internal policy documents fully cover such use.

Section 35(4) requires the consent of the data subject which is not applicable here. Section 35(5) requires that the processing be strictly necessary for law enforcement purposes, and meets a condition in Schedule 8.

For the processing in relation to the purposes here, the following conditions in Schedule 8 are met:

- Statutory etc. purposes Para 1(a)(b);
- Administration of justice Para 2;

The applicable legislation that provides the lawful basis is listed in more detail in *Appendix C – Applicable legislation.*

2.5. Consent

The parties will often work collaboratively with data subjects and aim for agreement with them on the actions to be taken. However, it is recognised that this is different to using consent (Article 6 (a)) or explicit consent (Article 9 (a)) as the lawful basis conditions used for processing under this agreement.

Consent is not the lawful basis the public sector organisations use for processing information shared under this agreement.

2.6. Proportionality and necessity

Proportionality, data minimization, necessity and not being excessive are factors to be taken into consideration when deciding whether to share personal information. In making the decision, employees must weigh up what might happen as a result of the information being shared against what might happen if it is not, and apply their professional judgement. It is for this reason professionals must ensure they comply with Article 5(1)(c) and share the adequate and relevant information, and limit that information to what is necessary for the achieving of the DSA aims. When sharing under Part 3 and if it is sensitive data, then the sharing must be strictly necessary.

There are legal safeguards which mean that it is a defence when sharing that the Data Controller believed it was:

- necessary for the purposes of preventing or detecting crime
- required or authorised by an enactment, by a rule of law or by the order of a court or tribunal
- in the particular circumstances, was justified as being in the public interest.

Or the Data Controller acted in the reasonable belief that:

- the person had a legal right to do the obtaining, disclosing, procuring or retaining
- the person would have had the consent of the controller if the controller had known about the obtaining, disclosing, procuring or retaining and the circumstances of it, or
- the person acted—

  (i) for the special purposes,

  (ii) with a view to the publication by a person of any journalistic, academic, artistic or literary material, and

  (iii) in the reasonable belief that in the particular circumstances the obtaining, disclosing, procuring or retaining was justified as being in the public interest

Professionals must record:

- the decision to share, or not to share
- the lawful basis for sharing
- to whom the information was shared

This will enable the Data Controller to account for decisions made.

2.7. Other relevant legislation

The actual disclosure of any personal data to achieve these objectives must also be conducted within the framework of the Human Rights Act 1998 (HRA) and the Common Law Duty of Confidence. Appendix B: Data Protection Principles.

2.8. Freedom of Information

The Freedom of Information Act 2000 gives all individuals the right to access official information held by a public authority (the Environmental Information Regulations 2004 also allow access to data. For ease of drafting, FOI is used to cover both legislation). Limited exemptions may apply and all public authorities must ensure they have recognised procedures in place for administering requests of this nature.

All requests for FOI will be directed through the relevant organisations' FOI processes. Each party will seek advice/opinion from the other parties where there is concern about that information being released and any impact it is likely to have. The final decision to disclose or not will lie with the party who holds the information (data controller).

It is encouraged that all parties proactively publish this document. It may also be disclosed to the public under FOI.

3. Individuals

Organisations processing personal data are required to begin with the ethos of Data Protection by Design and Default (also known as Privacy by Design (PbD)). This means that we must consider and uphold the privacy of an individual's data before we begin and throughout the processing taking place.

Each party agrees that they have undertaken a DPIA (Data Protection Impact Assessment), where they feel the processing meets the legislative criteria for a DPIA.

3.1. Right to be informed – Privacy notices

Where personal data is created or received by one of the parties, they are responsible, as required by law, for making the data subject(s) aware within a reasonable time frame that the organisation holds the data, what they will do with it, how long they will keep it, and who they will share it with (such as under this DSA). This is normally done through a privacy notice, whether written or verbal. Organisations agree that they will adhere to the transparency requirements of the UK GDPR and will issue appropriate notices which inform the data subject that the information will be shared with the parties under this agreement.

In some cases, it may not be appropriate to let a person know that information about them is being processed and shared. Consideration should be given to whether notifying the individual may place someone at risk or prejudice a police or Environment Agency criminal investigation. In these circumstances, the parties need not inform individuals that the information is being processed/shared; but should record their reasons for sharing information without making the individual aware.

3.2. Data subject rights requests and complaints

Each organisation must have in place appropriate policies and processes to handle data subject requests made in line with data protection law, to ensure they are responded to within the deadline and in an appropriate manner. Requests include; right of access, right to rectification, right to erasure, right to restrict processing, right to data portability, right to object and rights related to automated decision making including profiling.

If an individual successfully requests the erasure or limitation of use of their data (right to erasure, right to rectification, right to restrict processing, right to object), the party that has been informed by the data

subject will communicate this to the other parties where relevant and appropriate. In each case each party is responsible for securely disposing of such information or limiting its processing.

Each party must have clear, fair and objective complaint procedures. Any complaints from individuals about how their data is being processed or shared will be handled under the policy and processes of the organisation concerned.

3.3. Data subjects

There is a breadth of data subjects whose data is shared under this agreement. The data subjects include the following:

- Victims and suspected perpetrators of environmental crime
- Witnesses
- professional opinions of employees e.g. environmental health officers, civil enforcement officers, and police officers
- people captured on Body Worn Video or CCTV or similar, although note that this is fully covered in the CCTV DSA
- persons contacting the council and/or the police in connection with environmental crime
- persons associated with vehicles of interest to the Parties
- persons holding relevant licences such as scrap metal dealer licences, dog breeding licences, dog walking licences

Some of the data subjects may be vulnerable. Parties to this agreement are in positions of power over data subjects and data subjects have little or no control over why and how their data is processed.

4. Data

The personal data and its processing involved in these workstreams can be extensive, highly sensitive and at times intrusive. There may be a high volume of data and data subjects depending on the situation in particular councils. Anonymisation or pseudonymisation will rarely be possible because of the way the work focuses on individuals, although any statutory returns, workforce planning and management reports should be anonymised if possible.

Information will include:

- **Personal, special category and criminal data** to enable the swift and effective prevention, detection, and prosecution of environmental crimes
- **Personal, special category and criminal data** for law enforcement purposes, including data defined as **sensitive data** for the competent authorities for law enforcement purposes
- **Aggregated (anonymised or pseudonymised) data** reporting to enable the parties to benchmark and share good practice
- **Aggregated (anonymised or pseudonymised) and personal data regarding** outcomes and trends
- **Personal and anonymised data** required for statutory returns and/or work planning and effectiveness audits and similar.

4.1. The data to be shared

Due to the complexity of the council work in these areas, providing a prescriptive list of data fields to be shared is difficult. Not all the above information will be shared in every case; only relevant information will be shared on a case-by-case basis where an organisation has a 'need-to-know' the information.

Data that will be shared includes:

- name and contact details
- address
- age/date of birth
- equalities information for example to aid in identification
- physical description for example to aid in identification
- educational institutions, to aid in identification for example where students are suspected of graffiti
- housing information for example to aid in identification
- financial information. This may be relevant to establish commission of an offence, or as an aggravating or mitigating factor eg was unauthorised waste carried for payment
- images / video footage in Body Worn Video, photographs, film or CCTV, although note that this is fully covered in the CCTV DSA
- employment information, for example to aid in identification or to establish commission of an offence, or as an aggravating or mitigating factor eg was unauthorised waste carried for payment, or was the person fly posting doing so under an employment type relationship
- any known risk the data subject may pose to council or Partner staff or others
- Vehicle details (inc VRN, make, model, registered keeper details)
- information held in licence registers and provided as part of licensing applications whether successful or not
- details of previous visits and inspections undertaken by the Party, to give full background and context for example to consider whether a prosecution would be in the public interest
- details of complaints held by the Party, to give full background and context for example to consider whether a prosecution would be in the public interest
- information that would assist a Party in locating or identifying a suspected perpetrator or witness to a matter covered in this DSA
- Information that would assist the Party in establishing that an offence has or has not been committed

4.2. Deceased persons

It is noted that the sharing may involve data of deceased persons which will not be covered by data protection legislation but will still require due regard to the common law duty of confidentiality and the Human Rights Act.

4.3. Confidential information

In this agreement, we refer to personal data, as defined by data protection legislation. However, the word 'confidential' may be used by individuals and practitioners to describe information and can mean different things to different people.

Confidential can mean:

- Personal and special category data as defined by data protection legislation
- Patient Identifiable Information (PII) or 'personal confidential information'; both terms most commonly used in health settings
- Information which is not already lawfully in the public domain or readily available from another public source
- Information that has been provided in circumstances where the person giving the information could reasonably expect that it would not be shared with others.

4.4. Storing and handling information securely

Information must be stored and shared lawfully and securely. Special category data may need a higher level of security. The employee/organisation sharing the information must choose the most appropriate secure method of transfer and be responsible for its safe delivery.

Electronic records:

Organisations may have different electronic methods for storing and sharing information securely. Some have local restrictions which block access to information shared using specific tools.

Parties must make sure the chosen method is suitably secure and that access is only provided to those who need it, and only to the data needed.

Unencrypted email (i.e. sent in plain text over the public internet) must not be used to share information under this DSA.

Sharing methods that may be appropriate include:

- **Email encryption tools** where the email and attachments are encrypted from named sender to named recipient (e.g. Microsoft 365 Message Encryption; Egress Protect)
- **Encryption via Transport Layer Security** (TLS) where the email and attachments are encrypted in transit over the internet. Both the sender and recipient email domains must have TLS enabled. This can be checked using https://www.checktls.com/
- **Secure corporately managed data repository and sharing platforms** (e.g. MS Teams; Google Docs)
- **Secure group email services** (e.g. CJSM: https://cjsm.justice.gov.uk/index.html)
- **Secure File Transfer Protocols**
- **Virtual Private Networks**

The above are examples, get advice from your organisation's information security or IT teams on secure methods of sharing available at your organisation and document these in the organisation's process documents.

Phone/virtual meetings/face-to-face meetings:

Information may be shared over the phone, in a virtual meeting, or at face to face meetings. Meeting attendance and distribution of content, e.g. meeting minutes or recordings, must be limited to those with a need to know.

Sharing by telephone should be avoided unless the requirement is urgent and email is not practicable.

Individuals should be aware of their surroundings and the presence of other individuals or voice recognition or 'Internet of Things' devices (e.g. virtual assistant apps like Alexa, Cortana, SIRI) to ensure they aren't overheard by those that should not have access to the information discussed.

Paper records:

Printed paper records must always be kept to a minimum and kept secure whether in the office, home or during transit. Organisations must adopt an appropriate policy surrounding the use and transfer of paper records. Appropriate security methods must be applied when storing or disposing of paper records.

4.5. Access controls and security

All parties will ensure that they have appropriate technical and organisational security measures in place to guard against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data.

All personal data held by partner organisations electronically will be stored in a secure network area with password protected entry and appropriate back-up functionality. The systems will be auditable so that it is possible for any auditor to establish who has accessed the system. All laptops, computers, and any other portable devices will be encrypted.

Any individual no longer required to have access will promptly have such access revoked by the line manager and Human Resources related to the relevant employer.

There is an expectation that partner organisations will either be working toward ISO 27001, the International Standard for Information Security Management, or a similar standard of security.

4.6. Outside UK processing

Parties are responsible for ensuring that if information is processed or shared outside the UK, that suitable written agreements are in place, and that appropriate due diligence has been completed for the transfer of data.

4.7. Data quality

Each partner is responsible for ensuring the accuracy and relevance of the personal data that it processes and shares and must have clear processes in place for managing data quality.

Any party learning of the inaccuracy of personal data is responsible for informing the parties with whom that data has been shared.

4.8. Data breaches/incidents

All parties must have a clear policy and procedure regarding the reporting and handling of data protection breaches or data loss incidents. This must include assessing the level of risk to the data subject(s), as well as to make a decision on notifying the ICO within the statutory time frame of 72 hours. This complies with Articles 33 and 34 of UK GDPR, and Section 67 and 68 of the DPA 2018 for personal data processed for law enforcement purposes.

If the incident may impact the processing of another party to this agreement, all relevant parties should be informed and appropriate coordination of the incident must take place. The decision to report the incident will lie with the data controller(s) of the information concerned. The parties agree to provide all

reasonable and necessary assistance at their own expense to each other to facilitate the handling of any personal data breach in an expeditious and compliant manner.

It is confirmed that security breaches (including misuse or unauthorised disclosure) are covered by the partner's internal disciplinary procedures. If misuse is found there should be a mechanism to facilitate an investigation, including initiating criminal proceedings where necessary.

4.9. Retention & Disposal

Organisations are required by data protection legislation to document processing activities for personal data, such as what personal data is held, where it came from and with whom it has been shared. This Record of Processing Activity (ROPA) must include the retention period for the data.

Information must not be retained for longer than necessary for the purpose for which it was obtained. Disposal or deletion of personal data once it is no longer required, must be done securely with appropriate safeguards, in accordance with that organisation's disposal policies.

5. Signatures

All local authorities signing this DSA will do so via a centralised electronic system rather than physically signing a document.

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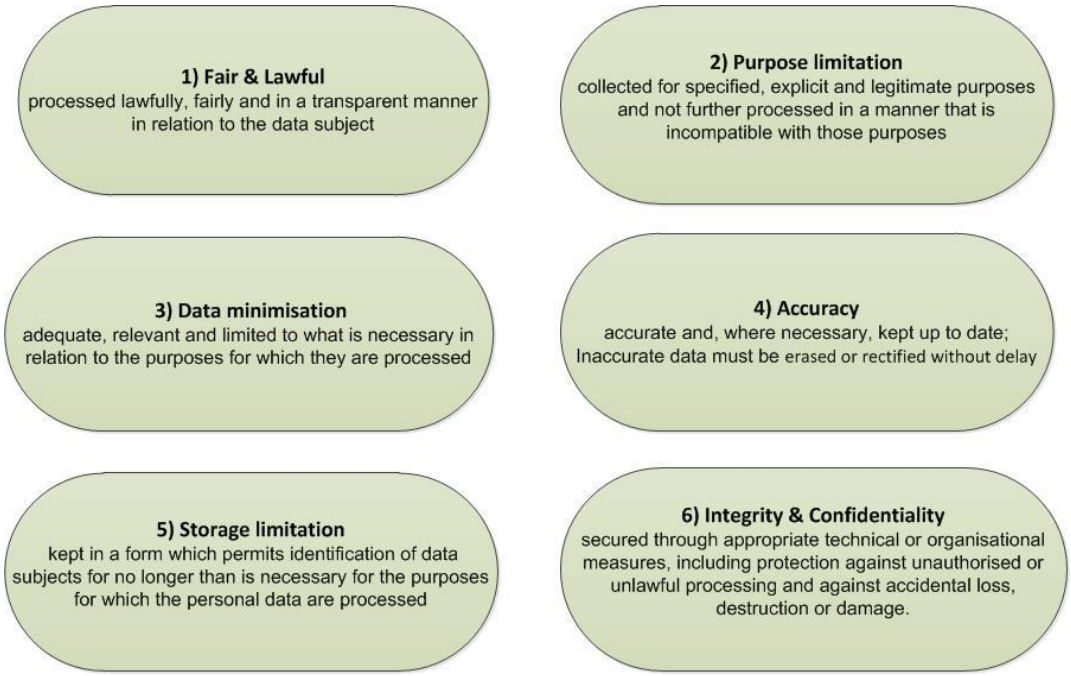
Appendices

5.1. Appendix A: Parties to this agreement

Organisation	Duties
London Borough	● Co-ordinates, gathers, processes, risk assesses and shares information held about all the areas covered in the DSA in conjunction with information received from partner agencies, to enable the council to undertake its statutory duties in these areas ● Makes decisions on whether to undertake enforcement or other appropriate actions under its powers in the legislation listed in this DSA ● Allocates resources in accordance with priority of tasks and policies ● Co-ordinates, gathers, processes, risk assesses and shares information covering all the areas under this DSA with partners to achieve common goals ● Undertakes interventions as necessary to ensure the safeguarding of vulnerable people ● Decides whether to undertake prosecutions when offences covered by the legislation in this DSA has been breached and it is within the council's remit ● Takes appropriate and proportionate steps to ensure the safety of employees and others

5.2. Appendix B: Data Protection

The Principles as described in Article 5 of the General Data Protection Regulation.



5.3. Appendix C: Applicable legislation

Legislation	Main purpose of Legislation
Environmental Protection Act 1990	Covers offences such as air pollution, waste and dumping eg fly tipping and misrepresentation of waste, contaminated land, nuisances, and littering Also covers offences and issues including nuisance parking, abandoned vehicles, fly posting, littering, graffiti, and dog control areas
Clean Neighbourhoods and Environment Act 2005	This additional legislation complements the EPA1990 and makes its offences stronger.
Control of Pollution Act 1974 and Control of Pollution (Amendment) Act 1989	Unlicensed waste disposal provisions and transporting controlled waste without registering
Refuse Disposal (Amenity) Act 1978 and Removal and Disposal of Vehicles Regulations 1986	Provisions around dumping of vehicles, control of abandoned vehicles
Noise Act 1996	Provisions around night time noise from premises
Town and Country Planning Act 1990	Provisions around flyposting
The Local Government (Miscellaneous Provisions) Act 1976	Control of Road Side Sales
Highways Act 1980	Graffiti, Obstructing a highway, depositing things on a highway
Prevention of Damage by Pests Act 1949	Pest control powers
Human Rights Act 1998	The Human Rights Act 1998 sets out the fundamental rights and freedoms that everyone in the UK is entitled to.

5.4. Appendix D: Information Sharing Checklist

The following questions must be considered when deciding whether to share information.

- Whose information is this?
- Is there a lawful basis to share the information? Justify the purpose and identify relevant legislation that applies.
- Can information be pseudonymised or anonymised ahead of sharing?
- How have individuals been informed that the information will be shared eg via a privacy notice? Will they have the expectation that their information will be shared? Consider whether notifying the individual of the sharing may place someone at risk or prejudice a police or safeguarding investigation.
- Have any requests not to share been received and considered?
- How much information is it necessary to share in this situation?
- Is the information accurate and up to date? Has the difference between fact and opinion been stated?
- Is access to the information limited to only those who need it? Is it being given to the right person?
- Is the information being shared in a secure way?

Has the decision to share or not share been recorded?